SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA

Department 1
Honorable Eunice Lee, Presiding
Lisbeth Martinez, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: October 27, 2026 TIME: 9:00 A.M. and 9:01 A.M.

To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling, in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.

IMPORTANT: WHEN CALLING THE COURT AND COUNSEL, PARTIES ARE TO TAILOR THE SCOPE AND SPECIFY THE ISSUE TO BE CONTESTED.

LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
LINE 1	2010-1-CV-171215	Citibank (South Dakota), N.A. vs T. Schaffer	**Motion to Vacate** Scroll down to Line 1 for Tentative Ruling.
LINE 2	23CV416606	Zhao Zheng vs Ming Lin	**Motion for Summary Adjudication** Scroll down to Line 2 for Tentative Ruling.
LINE 3	24CV447360	State Farm Automobile Mutual Insurance Co. vs. J. Schmidt	**Motion to Compel Respondent's Responses to Special Interrogoatires** Scroll down to Line 3 for Tentative Ruling.
LINE 4	24CV447973	Melva Douglas vs MTC Financial et al	**Demurrer to Second Amended Complaint** Scroll down to Line 4 for Tentative Ruling.
LINE 5	24CV449814	Alberto Villanueva-Castro vs Dionicio Palencia Salazar et al	**Motion to Vacate Dismissal of Entire Action** Scroll down to Line 5 for Tentative Ruling.
LINE 6	24CV455225	Janae Pina vs Ford Motor Co. Inc., et al	**Motion for Attorney's Fees, Costs, and Multiplier** Scroll down to Line 6 for Tentative Ruling.
LINE 7	25CV461084	Roger Villegas vs City of Mountain View et al	**Motion to Compel Responses to Request for Production of Document, Set Two and Sanctions** Scroll down to Line 7 for Tentative Ruling.
LINE 8	26CV496278	Mitra Kooravand vs Negeen Restaurant Inc.,	**Motion for Leave to File Cross Complaint** Scroll down to Line 8 for Tentative Ruling.

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LAW AND MOTION TENTATIVE RULINGS

9:01 A.M.			
LINE 1	25CV477635	Mid-Century Insurance Co. vs Justin Collins	**Hearing: Appoint Guardian ad Litem** Parties to appear.
LINE 2	26CV496227	Lorraine Aguilar vs Jacob Garcia	**Hearing: Order of Examination** Parties to appear.

9:00 A.M.

Calendar Line # 1

Case Name Citibank (South Dakota), N.A. vs T. Schaffer

Case No. 2010-1-CV-171215

Motion to Vacate

I. BACKGROUND

This collection case stems from Citibank (South Dakota), N.A. ("Citibank")'s Complaint filed on May 4, 2010 against defendant T. Schaffer ("Schaffer"). Default was entered on August 24, 2010. From 2013 through April 2025, Citibank filed memorandum of costs and writ of executions. In April 2020, Citibank filed an application for renewal of judgment against defendant Schaffer in the amount of $51,616.44. On September 17, 2025, Citibank filed an acknowledgment of satisfaction of judgment in full.

Before the Court is defendant Schaffer's motion to vacate that was filed on February 26, 2026. Defendant filed two separate proof of services in August 17, 2026 indicating: (1) personal service on April 28, 2026 to an individual identified as "Jordani S." who identified themselves a s a corporate officer at "388 Greenwich St, c/o Corporate Officer, New York, NY 10013" and (2) personal service on April 17, 2026 to an individual identified as "Kelly Umstott" as "person authorized to accept" with the address listed as "5800 S Corporate PI, ATTN: Legal Department, Sioux Falls, SD 57108."

Per Code of Civil Procedure section 1005(b) opposition papers were due on October 14, 2026.

The Court has carefully reviewed the notice of motion, memorandum of points and authorities, Declaration of defendant Schaffer and attached Exhibits A-F (totaling 14 pages); proof of service; and the pleadings.

II. PROCEDURAL VIOLATION

A. NOTICE

Preliminary, the court notes that the defendant's notice of motion is procedurally effective per Code of Civil Procedure section 1010 and California Rules of Court, rules 3.1110(a) and 3.350. The two proofs of service that the plaintiff submits with this motion fails to list counsel of record for plaintiff Citibank in this matter. In this matter, Citibank is represented by counsel in the action as Harvey M. Moore with an address associated in Santa Ana, California. The lack of opposition or stipulation to service also raises concerns regarding deficient service. Thus, the Court cannot consider the merits of the motion.

B. STATUTE OF LIMITATIONS

Under Civil Code section 337, the statute of limitations of credit card debts is four years and a judgment is effective for ten years, but may be renewed.

Pursuant to Code of Civil Procedure section 583.310, "[a]n action shall be brought to trial within five years after the action is commenced against the defendant." "In computing the time within which an action must be brought to trial pursuant to this article, there shall be excluded the time during which any of the following conditions existed: (a) The jurisdiction of the court to try the action was suspended. (b) Prosecution or trial of the action was stayed or enjoined. (c) Bringing the action to trial, for any other reason, was impossible, impracticable, or futile." (Code of Civ. Proc., § 583.340). "An action shall be dismissed by the court on its own motion or on motion of the defendant, after notice to the parties, if the action is not brought to trial within the time prescribed in this article." (*Id.,* at § 583.360(a)).